

COMMERCIAL LEASE AGREEMENT

THIS LEASE AGREEMENT (the "Lease") is entered into as of October 1, 2020, by and between **LANDLORD ACQUISITIONS LLC** ("Landlord") and **SUBWAY REAL ESTATE, LLC**, a Delaware limited liability company ("Tenant").

SECTION 1. PREMISES

Landlord hereby leases to Tenant, and Tenant hereby leases from Landlord, the premises located at 455 Main Street, Suite 104-B, comprising approximately **1,800 square feet** of retail space (the "Premises").

SECTION 2. LEASE TERM

The Lease term shall commence on January 1, 2021 (the "Commencement Date"), and shall expire ten (10) years thereafter, on **December 31, 2030** (the "Expiration Date"), unless terminated earlier in accordance with the terms of this Lease.

SECTION 3. BASE RENT

Tenant covenants and agrees to pay to Landlord monthly base rent during the term of this Lease. The initial monthly base rent for the first year of the Lease term shall be **\$4,500.00 per month**, payable in advance on or before the first day of each calendar month.

Tenant shall prepay the first full month's base rent of **\$4,500.00** upon execution of this Lease.

SECTION 4. SECURITY DEPOSIT

Tenant shall deposit with Landlord the sum of **\$9,000.00** upon execution of this Lease as a security deposit for the faithful performance of all covenants and obligations of Tenant under this Lease.

SECTION 5. COMMON AREA MAINTENANCE (CAM)

Tenant agrees to pay to Landlord its pro-rata share of Common Area Maintenance (CAM) expenses, which is estimated to be **12.5%** of Landlord's total operating costs. Landlord agrees that Tenant's pro-rata share of CAM expense increases shall be capped at **4% annually**.

SECTION 6. RENEWAL OPTIONS

Tenant is hereby granted **one (1) renewal option** to extend the Lease term for an additional period of five (5) years. Tenant must exercise this option by giving written notice to Landlord at least **180 days** prior to the Expiration Date.

SECTION 7. GUARANTEE

The obligations of Tenant under this Lease shall be fully guaranteed by its parent company, **Subway IP Inc.** ("Guarantor") under a separate Guaranty Agreement of even date.